25-5146 ABOUAMMO V. UNITED STATES

DECISION BELOW: 122 F.4th 1072

LOWER COURT CASE NUMBER: 22-10348

QUESTION PRESENTED:

As part of an investigation into a scheme to disclose nonpublic Twitter account information to foreign actors, San Francisco-based FBI agents visited Petitioner Ahmad Abouammo at his home in Seattle. While they were there, Mr. Abouammo went upstairs and emailed them an allegedly falsified document. Mr. Abouammo's only interaction with the agents occurred in Seattle.

A grand jury in the Northern District of California indicted Mr. Abouammo for (among other things) falsifying documents with the intent to impede an investigation. The parties then agreed to toll the statute of limitations for other uncharged offenses. On the day the tolling agreement expired, the government filed a superseding *information* adding various felony counts. Mr. Abouammo never waived prosecution by indictment. See Fed. R. Crim. P. 7(b). Four months after the limitations period had expired, the government dismissed this placeholder information and replaced it with a superseding *indictment* containing the same charges.

The questions presented are:

1. Whether venue is proper in a district where no offense conduct took place, so long as the statute's intent element "contemplates" effects that could occur there.

2. Whether a criminal information unaccompanied by a waiver of indictment is an "information charging a felony" that allows the government to unilaterally extend the statute of limitations under 18 U.S.C. § 3288.

GRANTED LIMITED TO QUESTION 1 PRESENTED BY THE PETITION.

CERT. GRANTED 12/5/2025